DOWN THE SHUTTERS, BUT OPEN A WINDOW

An SC decree forces Madhya Pradesh to stop winking at illegal shops in Bhopal. But a new development plan may ease curbs

By **Rahul Noronha**

IF ALL INDIAN CITIES ARE STRICKEN by cancerous overgrowth, beautiful Bhopal is having a special reckoning with a key mutagen: the illegal use of residential properties for commerce. Officialdom has winked at it for decades, or been complicit. But a Supreme Court stricture in the ongoing *Loganathan vs State of Tamil Nadu* matter, a landmark case that has turned pan-India in its application, has brought things to a head. Before an August 4 hearing, the Bhopal Municipal Corporation (BMC) complied, acting on notices for closure served earlier to 429 properties in Arera Colony and Rohit Nagar. Then, 101 of them were shuttered.

That was enough to make August's opening weekend unusually stormy. Owners of beauty parlours, showrooms, cafes, apparel stores protested. In a touching recourse to social conscience, they cited the families of workers who would be affected. The concern soon spread upward. Within 24 hours, CM Mohan Yadav summoned to his residence two ministers, two MLAs (one apiece from BJP and Congress), top officials—the full Bhopal power setup. Sources say the politicians were agitated and voiced strong bipartisan support for extra-legal 'growth'. The babus? Meaningfully mum. The epiphany didn't take long to arrive: the stricken builder-rental tycoon lobby needed urgent state support. The businesses were allowed to reopen on August 3.

The slow waltz of bureaucracy is often the best cure for legal dilemmas. So, on August 2, the state also set up a 10-member committee—headed by additional chief secretary, urban administration—to 'recommend procedures to implement the SC order'. Till its report came, no illegal property was to be touched. According to sources, a development plan too is being hatched that would legalise mix land use on certain roads, with an enabling retrospective clause to protect Bhopal's existing, tangible heritage of illegalities.



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MIXED USE Traders protest BMC drive, demanding protections, Bhopal, Aug. 18

Takeaways

- **MP first acts, then retracts, then dawdles after SC order**
- **Illegal shops face closure, but govt looks for 'solutions'**

THE COVER IS BLOWN

At the SC hearing, deferred to August 5, the BMC now had a neat pretext: it had dutifully identified and sealed illegal structures, it pleaded, but the committee now ties its hands. The two-judge bench of Justices Ahsanuddin Amanullah and R. Mahadevan went into high dudgeon at the chicanery—it duly quashed the committee and made it clear that the BMC officials now had a free hand to execute their job—and no excuses. The court asked for an action taken report in five weeks, and so far, some 7,000 notices have been sent out.

Of course, behind every crisis in India, it's not difficult to find long decades of a certain administrative torpor. The state hadn't come up with a development plan for all of 31 years. The one in operation—Bhopal Development Plan 2005—was drafted in 1994-95. In this regulatory twilight, businesses claim they were 'forced into illegality'.

To be fair, three drafts were born—in 2009, 2020, 2023—only to die in sequence. If one of them had fructified, and some areas been certified for mix use, the onus of creating parking could have been fixed on owners. Presently, since most illegal commercial establishments are residential properties on paper, most of them have gotten away by not creating dedicated parking spaces. The bigger buildings, running multiple businesses, draw 25-30 four-wheelers at times. The evening mayhem is a good diagram of the law as it works. ■